



File No.: EXP202207416

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
FACTS

FIRST: On May 17, 2022, a complaint was filed with the Spanish Agency for Data Protection against NOXVEL CORPORATE BANK (hereinafter, the complained party).

The reasons for the complaint are as follows:

Complaint against the responsible party of the website <https://noxvel-corporate.com/>, apparently a financial entity. The complainant believes it to be a scam and states that there could be fraudulent use of customer data. It is expressly mentioned that there is no privacy policy.

Relevant documentation provided by the complainant:

- Message received by the complainant informing them that they must present a bank guarantee in order to receive a deposit.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was returned as unknown on July 15, 2022, as evidenced by the acknowledgment of receipt in the file. The matter was referred to the Bank of Spain for information regarding the complained party, and on July 19, 2022, a letter was received from the data protection delegate of the Bank of Spain, indicating to the AEPD that "NOXVEL CORPORATE BANK appears to be an unregistered financial entity."

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following:

On November 17, 2022, the inspector responsible for the preliminary investigation actions navigated the website <https://noxvel-corporate.com> and obtained the following information:

1. The contact details appearing on the website are the phone number from Spain ***PHONE.1, the email address "contact@noxvel-corporate.com" and the postal address "Carrer de Girona, 38, 08010 Barcelona, Spain."

An information request was made to Orange Espagne, S.A.U., (hereinafter, ORANGE), regarding the operator of the phone number ***PHONE.1 in accordance with the inquiry made on November 17, 2022, in the "Numbering and Telecommunications Operators Registry" of the National Commission of Markets and Competition (<https://numeracionyoperadores.cnmc.es/portabilidad/movil>). On December 2, 2022, a document was submitted to the AEPD on behalf of ORANGE in response to this information request, informing the following:

The ownership of the phone line ***PHONE.1 is a prepaid line registered under the name A.A.A. with ID ***NIF.1 and address at ***ADDRESS.1.

On December 7, 2022, a call was made to the phone ***PHONE.1 obtaining the following result:
A voicemail message from Orange indicating to leave a message.

On December 7, 2022, an email was sent to contact@noxvel-corporate.com requesting, among other things, the name of the company. The following results were obtained:

On May 5, 2023, a search was conducted in the account from which this email was sent, revealing that no email had been received containing the word "noxvel."

On March 14, 2023, information was requested from HOSTING CONCEPTS BV (whose trade name is "Openprovider"), the provider of the domain "noxvel-corporate.com," for the information "name, surname, ID, address, and contact details of the client who contracted the domain 'noxvel-corporate.com'." On the same day, March 14, 2023, HOSTING CONCEPTS BV responded via

email providing the following information:

The content of the email is as follows:

“Dear Requester,

We have reviewed your request within our team and your request is approved.

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We can supply you with the following information of the registrant of the domain: noxvel-corporate.com

Be aware that we work only with resellers and do not have direct contact with registrants / end customers.

Therefore we have no further details (no payment details / no IP information) from registrants / end users.

First Name (...)

Last Name (...)

Phone (space separated) ***TELÉFONO.2

Email ***EMAIL.1

Address data

Street Address ***DIRECCIÓN.2

Zip code (...)

City (...)

State Corse

Country FR”

[Unofficial translation:

“Dear Applicant:

We have reviewed your request within our team and your request has been approved.

We can provide you with the following information of the registrant of the domain:

noxvel-corporate.com

Please note that we work only with resellers and do not have direct contact with registrants/end customers.

Therefore, we have no further details (no payment details/no IP information) from registrants/end users.

First Name (...)

Last Name (...)

Phone (space separated) ***TELÉFONO.2

Email ***EMAIL.1

Address data

Street Address ***DIRECCIÓN.2

Zip code (...)

City (...)

State Corse

Country FR”]

On March 16, 2023, an email was sent to the address ***EMAIL.1 requesting the following information about the person or company that contracted the domain “noxvel-corporate.com”: name, surname, NIF, address, and contact details, with the following result:

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No response has been received to this email.

On May 5, 2023, a search was conducted for the address ***DIRECCIÓN.2 in the postal code (...) within the website <https://www.google.com/maps> obtaining the following information:

No street with that name was found in the postal code (...).

On March 15, 2023, collaboration was requested from the Commission Nationale de l'Informatique et des Libertés (hereinafter, CNIL), the data protection control authority of France, through the "Internal Market Information System" (IMI) to request information about who contracted the domain "noxvel-corporate.com", providing them with the contact details supplied by HOSTING CONCEPTS BV on March 14, 2023. The following information was obtained:

On March 31, 2023, the CNIL responded through the IMI System informing that it could not carry out the actions because "We have done research and inform you that the site seems to no longer exist." [Unofficial translation: "We have investigated and inform you that the site seems to no longer exist."]

On May 17, 2023, documents were submitted to the AEPD on behalf of BANCO DE ESPAÑA, with entry registration numbers REGAGE23e00031488532 and REGAGE23e00031656293, in which the following information was provided, among others:

Regarding NOXVEL CORPORATE BANK, which appeared to be a financial entity, allegedly based in Barcelona and responsible for the website <https://noxvel-corporate.com/>, it is indicated that "After your letter was forwarded to the competent area, they informed us that they conducted investigative actions to identify the responsible parties of that website, in order to carry out the necessary supervisory actions. These investigations were unsuccessful, as they were unable to locate reliable persons or addresses to direct the actions. Furthermore, the area informs us that, subsequent to these actions, they have observed that the aforementioned website has ceased to be operational, and therefore it has been decided to archive the actions taken.

On April 17, 2023, a request for information was sent to A.A.A. in order to ascertain the identity of the data controller conducting data processing through the website "https://noxvel-corporate.com/", obtaining the following information:

CORREOS provides proof of delivery that the request for information was delivered to A.A.A. on April 26, 2023, although no response has been received at the AEPD to this request for information.

On May 24, 2023, this request for information was resent to A.A.A. CORREOS certifies the impossibility of delivering this request, having attempted delivery with the result of "Absent" on June 9, 2023, at 10:04 hours and on June 14, 2023, at 16:40 hours,

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leaving notice in the mailbox. This notification was returned to the sender because it was not collected from the POST OFFICE on June 22, 2023.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

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2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and its rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any other relevant information pursuant to paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

III

Conclusion

In order to identify the responsible party of the entity that allegedly infringes Article 13 of the LOPDGDD, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

"1. Before adopting the decision to initiate proceedings, and once the complaint has been accepted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the

processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate processing that involves mass traffic of personal data.

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2. The preliminary investigation proceedings shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

After conducting the investigations mentioned in the Facts, it has not been possible to determine who is responsible for the entity being claimed.

The ownership of the telephone line has been determined, but no information has been obtained regarding the person responsible for sending the email received by the claimant.

Therefore, as it has not been possible to attribute responsibility for the processing, in accordance with what has been indicated, the Director of the Spanish Agency for Data Protection hereby RESOLVES:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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